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POLICY ON FACILITATION AND MEDIATION AT ESA

1. INTRODUCTION

With a view to addressing and, wherever possible, avoiding interpersonal conflicts simple and reliable informal mechanisms consisting in Facilitation and Mediation are required through the provision of external Mediators.

Prevention

In order to create a positive working environment, the Agency's focus in the first instance is on conflict prevention. If and when tensions arise, they need to be addressed as early as possible in order to avoid long-lasting conflicts and aggravation. In the case of interpersonal difficulties, it is essential that conflicts are addressed as early as possible and at the lowest level of intervention. Ideally, raising the matter directly with the person concerned is the best way to resolve issues.

Informal and formal mechanisms

As there is no one way of preventing or resolving conflict, different informal and formal mechanisms exist to address conflicts when they arise and need to be applied according to the specific circumstances of each case. It is therefore strongly advised to seek the resolution of the problem through informal mechanisms first with the possible involvement of the Conflict Navigators and/or the Mediators.

The advantage of the informal procedure over the formal procedure lies in the possibility of finding an amicable settlement of the situation in shorter timeframes thereby avoiding any further deterioration in the working environment.

Having recourse to the Mediators does not preclude application of the formal procedures provided for in the Staff Regulations, Rules and Instructions.

2. POLICY

It is the Agency's policy to introduce informal mechanisms (Facilitation and Mediation) allowing the resolution of interpersonal disputes within the Agency.

3. SCOPE

The present Instruction applies to all cases of interpersonal dispute in the workplace between:

- staff members; and
- staff members and on-site contractors' personnel, or research fellows or trainees

irrespective of if the reference to articles in the Staff Regulations applies only to ESA staff.

An ESA staff member whose appointment has been terminated based on Staff Regulation 15.2 may not apply to the Mediators on matters related to the termination.

4. DEFINITIONS

Within the scope of this Instruction, the following definitions apply:

Applicant to Facilitation or Mediation is a person within the scope of the instruction defined in section 3 above that is applying to the Coordinating Mediator to resolve an interpersonal conflict between himself and another Party.

Parties to Facilitation or Mediation are persons within the scope of the instruction defined in section 3 above that have recourse to one of these informal mechanisms to resolve an interpersonal conflict between them.

Facilitation is the use of a neutral third party to help Parties identify potential issues (such as tensions between viewpoints, interpersonal or other relationship issues) and facilitate constructive communication, collaborative problem solving and decision-making.

Mediation is the use of a neutral third party to help Parties reach a voluntary resolution of a dispute which Parties have been unwilling or unable to resolve on their own. Mediation is a structured process that starts with the signing of a mediation agreement, after which the mediator will engage the Parties in confidential discussions based on interests rather than positions and help them negotiate an amicable settlement. A successful mediation results in a written, signed agreement settling all matters in dispute.

Mediators refers to both the Coordinating and Local Mediators, whose Terms of Reference and Status are defined in Annex 1.

Conflict Navigators are staff members with roles and responsibilities with regard to conflict prevention and resolution appointed by the Department in charge of personnel matters following consultation with the Staff Association.

5. PRINCIPLES

5.1 Voluntary participation

Participation to Facilitation and Mediation is done on a voluntary basis.

5.2 Mediator's right to decline a case

Mediators may decline to examine any case submitted to them, stating their reasons for doing so.

5.3 On-going disciplinary proceedings

Where the Administration has initiated disciplinary proceedings in accordance with Staff Regulation 26, the Mediators shall not be authorised to examine a case submitted to them if the case concerns the alleged offence subject to disciplinary proceedings.

5.4 Impartiality

The Coordinating Mediator and the Local Mediators shall perform their duties in a fully independent manner. The Mediators are neutral and impartial, which implies they do not take position or judge who is wrong or right. While in office, they shall not hold any post or carry out any activity that might be considered to affect their impartiality.

5.5 Confidentiality

In the discharge of their duties, the Coordinating Mediator, the Local Mediators and the Conflict Navigators are bound to an obligation of confidentiality. Such obligation shall continue indefinitely after the termination of their appointment.

5.6 Security Marking of Communications

Communications between the Mediators and between a Mediator and an Applicant or any other person involved in a case treated by the Mediators are considered *ESA Unclassified – Personnel in Confidence* and shall therefore only be disclosed in accordance with section 3.4.6 of the ESA Security Directives and if duly authorised by the Mediators.

5.7 Unauthorised disclosure

Unauthorised disclosure by a staff member may constitute an offence liable to disciplinary action.

Unauthorised disclosure by on-site contractor personnel may result in them being barred from ESA sites and in the termination of the contract with the Contractor responsible for such personnel.

6. ROLES AND RESPONSIBILITIES

6.1 Coordinating Mediator

The Coordinating Mediator is in charge of the coordination of a network of Local Mediators appointed by the Director General and established in the countries where ESA has its Establishments.

The Coordinating Mediator shall examine the applications and endeavour to bring about an amicable settlement between the Parties within reasonable time limits using the two alternative dispute resolution techniques: Facilitation or Mediation.

Should the Coordinating Mediator find that it is not possible to propose Facilitation or Mediation, he/she shall inform the Parties accordingly.

6.2 Local Mediators

The Local Mediators shall examine the applications and endeavour to bring about an amicable settlement between the Parties within reasonable time limits using the two alternative dispute resolution techniques: Facilitation or Mediation.

Should the Local Mediator find that it is not possible to propose Facilitation or Mediation, he/she shall inform the Parties accordingly.

6.3 Conflicts Navigators

Conflict Navigators shall provide the Coordinating Mediator and the Local Mediators with practical arrangements and administrative support they require in order to carry out their duties.

7. EVALUATION OF THE POLICY

The effectiveness of this Instruction and its implementing documents will be evaluated by the Department in charge of personnel matters on a periodic basis, or at any time upon request of the Director General.

8. IMPLEMENTING DOCUMENTS

This policy is implemented through the application of:

- the Terms of Reference of the Coordinating Mediator and Local Mediators (Annex 1);
- the Rules of Procedure of the Mediators (Annex 2).

9. ENTRY INTO FORCE AND VALIDITY

This Instruction enters into force on the day of its publication and is effective for a period of four (4) years as from the date of its entry into force subject to prior revocation or revision as determined by the Director General.

At least one year prior to the end of above period this Instruction shall be reviewed to establish whether it requires extension, modification or revocation.

10. SUPERSEDED INSTRUCTION

This Instruction supersedes ESA/ADMIN/IPOL(2012)03 which is revoked.

11. PUBLICITY

This Instruction is made available to on-site contractors' personnel within the scope of this Instruction as defined in section 3 above.



The Director General

Annex 1

Terms of Reference and Status of the Coordinating Mediator and Local Mediators

I. Coordinating Mediator

Appointment

The Coordinating Mediator shall be appointed by Council upon proposal by the Director General following consultations with the Staff Association.

Term of Office

The term of office of the Coordinating Mediator shall be three (3) years. In consultation with the Staff Association, the Director General may propose to Council renewals of the Coordinating Mediator's term of office with a maximum of three (3) consecutive terms.

The Coordinating Mediator shall continue to perform his/her duties until his/her successors have been appointed or he/she himself/herself has been reappointed.

If the Coordinating Mediator is unable to complete his/her term, a new appointment procedure shall take place following the same rules and term of appointment.

Qualification

The Coordinating Mediator shall be professional, neither present nor former ESA staff member, and shall have acquired substantial experience in mediation in employment conflicts and in multi-cultural environments.

Privileges and Immunities

In the performance of his/her duty, the Coordinating Mediator will be covered by the Privileges and Immunities granted to Experts appointed by the Agency Art. XVII of Annex I to the ESA Convention.

II. Local Mediators

Appointment

By delegation of Council, the Local Mediators are appointed by the Director General, on a list proposed by the Coordinating Mediator following consultation with the Department in charge of personnel matters and the Staff Association. Local Mediators shall form a network of professionals of each gender distributed in a balanced way.

Term of Office

Their term of office and maximum renewals of term of office follow those of the Coordinating Mediator.

If a Local Mediator is unable to complete his/her term, a new appointment procedure shall take place following the same rules and term of appointment.

Qualification

The Local Mediators shall be professional, neither present nor former ESA staff members, and shall have acquired substantial experience in mediation in employment conflicts and in multi-cultural environments.

Privileges and Immunities

In the performance of their duty, the Local Mediators will be covered by the Privileges and Immunities granted to Experts appointed by the Agency under Article XVII of Annex I to the ESA Convention

Annex 2

Rules of Procedure of the Mediators

Article 1 – Requests for Facilitation or Mediation

1. An Applicant may request for Facilitation or Mediation in French or English, by email or telephone call to the Coordinating Mediator. The primary role of the Coordinating Mediator is to proceed with a screening of the application, in particular whether proposing Facilitation or Mediation to the Applicant, and appointment of a Mediator.
2. The Coordinating Mediator may propose to appoint another Mediator than the Local Mediators located at the duty station of the Applicant.
3. Depending on the case, the appointed Local Mediator shall seek to propose Facilitation or Mediation to the Parties within reasonable time limits. Should the Mediator find that it is not possible to propose Facilitation or Mediation, he/she shall inform the Parties accordingly.
4. Any Party, including the Local Mediator, may at any time withdraw from Facilitation and Mediation, in which case the procedure comes to an end.
5. With the agreement of the Applicant, one Local Mediator may transfer a case to another Local Mediator.

Article 2 – Administrative support

Conflicts Navigators appointed in each Establishment and site shall provide the Coordinating Mediator and the Local Mediators with practical arrangements and administrative support they require in order to carry out their duties.

Article 3 – Working methods

1. Upon first contact, the Mediator shall begin any attempt of interpersonal dispute resolution by listening to the Applicant in an open mind and understanding manner. As a first step, where appropriate, the Mediator shall try, by identifying and reframing issues and by developing a range of options, to help the Applicant develop new ways to solve the problems on his/her own accord. Should such an approach prove unsuccessful, the Mediator shall attempt to reach an amicable settlement through Facilitation or Mediation as described below.
2. The Mediator shall proceed with face-to-face discussions, when possible, or by web conferencing, with each of the Parties in dispute. The discussions are confidential and offer the opportunity to speak out freely before a joint meeting takes place. At this stage, the Mediator, in cases of low severity of the conflict, shall propose Facilitation to the Parties. If, however the conflict has started to crystallize, the Mediator shall try to reach a proposal for Mediation.
3. In case recourse to Mediation is opted for, the Mediator and the Parties shall sign an agreement covering the confidentiality, neutrality, voluntary participation as well as the responsibilities of each Party. In such an agreement, the Mediator shall also establish a calendar taking into account the legal and administrative constraints, as well as the urgency of finding a solution.

4. With the Parties' agreement, the Mediator may involve staff members from the Department in charge of personnel matters (including the medical services) or other Departments, and services that shall also be bound by confidentiality.
5. The Applicant and the other Parties(s) may also suggest arrangements for such a settlement to the Mediator.
6. The Mediator shall ensure balanced discussions. Should the Mediator in the course of the discussions consider that one of the Parties is not acting in good faith, the Mediator shall attempt to rectify the situation or if necessary terminate the process on the basis of section 5.2 - Principles of the present Instruction.
7. In the discharge of their duties, the Mediators are bound to an obligation of confidentiality with respect to any information disclosed to them in the course of their duties, including the initiation of a Mediation procedure, except where the Parties consent in writing to the disclosure and even then at the sole discretion of the Mediators. The only exception to this obligation to confidentiality is where there appears to be an imminent serious risk to life, health or integrity of persons, or to property, and where there is no other reasonable option than disclosure to the extent necessary to prevent the harm. Whether this risk exists is a determination to be made by the Mediators.
8. When carrying out their mandate, the Mediators shall take account of the ESA Convention, the Staff Regulations, Rules and Instructions, the Pension Scheme Rules and Instructions, the internal provisions adopted in application of these texts, the ESA Charter of Values and guiding principles, all other rules governing ESA, as well as in a supplemental capacity the pertaining principles and values commonly recognized by its Member States.
9. The Mediators perform their duties at ESA Establishments or at their professional office.

Article 4 – End of the procedure

1. The procedure shall end either:
 - a. with the adoption of an amicable settlement by the Parties, or,
 - b. if Mediators decline a case as provided for under section 5.2 - Principles of the present Instruction,
 - c. if Mediators do not reach an amicable settlement
2. The work carried out by the Mediators shall remain *ESA Unclassified - Personnel in Confidence* upon completion of the procedure unless the Parties request disclosure and even then at the sole discretion of the Mediators. All documents concerning the Parties involved in the Mediation shall be destroyed at the Mediators' discretion and at the latest at the end of their term of office or if Mediators decline a case pursuant to section 5.2 –Principles of the present Instruction, whichever is the latest.

Article 5 – Relations with formal procedures

1. Submitting an application for Facilitation or Mediation per se neither interrupts nor suspends the time limits applicable to the Advisory Board and Appeals Board in the Staff Regulations,

Rules and Instructions. The Mediators shall draw the Applicant's attention to these time limits when necessary, in particular by mentioning the possibility to appeal and providing the necessary information, subject to the procedure set out in the Staff Regulations, Rules and Instructions.

2. The Applicant may however, in the course of the Facilitation or Mediation process, decide to safeguard his/her right to appeal by submitting a claim to the Director General within the time limits and subject to the procedure set out in the Staff Regulations, Rules and Instructions. The appeal shall contain a request for a suspension of the claim procedure pending the finalization of the Facilitation or Mediation process.
3. An application for Facilitation or Mediation may not be filed with the Mediators if the Applicant has already sought the opinion of the Advisory Board, lodged an appeal with the Appeals Board relating to the same matter or if an investigation process in relation with a complaint for harassment has been launched.

Article 6 – Reporting

1. Every year the Coordinating Mediator shall present a consolidated activity report of his/her office and of the Local Mediators office to the Director General, while respecting confidentiality and anonymity, stating the number and nature of the cases referred to them, whether they resorted to Facilitation or Mediation and were solved and, where applicable, what obstacles, in their opinion, prevented solutions from being found. The report may also mention cases that raise general questions relating to human resources or administrative management, or ethical matters.
2. In their annual report, the Coordinating Mediator may make recommendations and suggest amendments to the regulatory framework and administrative practices.
3. The Director General shall have the annual report published for official use only, unless he decides otherwise, and shall have the necessary follow-up action taken.
4. The Coordinating Mediator may also present to Council and the Director General any other reports they deem necessary within the scope of activities of the Mediators.